IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-507

CP (CAA) No. - 06/230/232/ND/2022

IN THE MATTER OF:

Torqus Systems Pvt Ltd And Times Internet Ltd. **....Applicant**

SECTION

U/s 230-232 **Order delivered on 22.02.2023**

CORAM:
SHRI P.S.N PRASAD,
HON'BLE MEMBER (JUDICIAL)

DR. BINOD KUMAR SINHA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Adv Abhishek Sethi, Adv Syed Asad Mardi
For the Respondent	:
For the IT Dept	: Mr. Sunil Aggarwal, Sr St Counsel, Mr. Shivansh B Pandya Jr St Counsel with Mr. Utkarsh Tiwari Advs
For the RD	: Ms. Shankari Mishra
For the OL	: Ms. Hemlata Rawat, Mr. Aayushmaan Vatsyayana

ORDER

Heard the arguments advanced by Counsel for the Petitioner, Proxy Counsel for RD, Proxy Counsel for OL and Jr. St. Counsel for Income Tax Dept. Upon hearing the submissions made and arguments advanced by the Counsel for Petitioner, Proxy Counsel for RD has submitted in regard to objection for rejection of the Scheme on the ground that during 2015 the shares were valued at a premium whereas the Company was incurring loses. It is submitted by the Ld. Counsel for the Petitioner that as the existing shareholders have purchased the shares in the year 2018 as per the share value determined by an independent valuer and they do not see any impact of the share value during 2015 in respect of the present scheme. We do not find it as a valid reason to reject the proposal of the petitioner. Further, the Hon'ble Supreme Court time and again has said that the Company is the best judge to manage its own

business. Upon hearing the arguments advanced by the respective Counsels and considering their respective submissions, order in this **matter is reserved.**

Sd/- **Sd/-**

(DR. BINOD KUMAR SINHA)
MEMBER (T)

(SHRI P.S.N PRASAD)
MEMBER (J)

Khushboo
22.02.2023